

NSIA PRIZE FOR INNOVATION 4.0 COMPETITION SUBMISSION AGREEMENT

PLEASE READ THIS AGREEMENT CAREFULLY BEFORE MAKING A SUBMISSION (DEFINED BELOW). THE TERMS OUTLINED IN THIS AGREEMENT INCLUDE IMPORTANT TERMS REGARDING YOUR PARTICIPATION IN COMPETITION AND MATTERS SUCH AS INTELLECTUAL PROPERTY RIGHTS IN YOUR SUBMISSION; GRANTS CERTAIN RIGHTS AND RELEASES; OUTLINES THE APPLICABLE ARBITRATION PROCESS; AND MAKES CERTAIN REPRESENTATIONS, WARRANTIES AND INDEMNITIES REGARDING YOUR SUBMISSION AND PARTICIPATION IN THE COMPETITION.

The NSIA Prize for Innovation 4.0 Competition Programme ("**the Competition**") is designed to recognise and reward Nigerian innovators and entrepreneurs for outstanding work in developing and scaling solutions.

The priority sectors for the programme are Climate & Food Security, Healthcare and Manufacturing. The listed priority sectors were selected based on the progressive impact innovations these sectors can have on the Nigerian economy. The programme is expected to catalyse growth and development of the Nigerian ecosystem by identifying budding entrepreneurs and innovators, enhancing their capabilities, and providing a platform to showcase and scale up Nigerian solutions on a global scale.

This Competition Submission Agreement ("**Agreement**") forms a legal contract between you (including where applicable, all members of your Team (as defined in clause 3.1) and the Eligible Entity (as defined in clause 3.1) (all hereinafter referred to as the "**Applicant**") and the Nigeria Sovereign Investment Authority (the "**Sponsor**").

By submitting the registration form through the online portal at [<https://nsia-ip.com/>] (the "**Site**") for the Competition, the Applicant agrees to be bound by the terms and conditions of this Agreement and the Competition Guidelines attached as Schedule A (the "**Competition Guidelines**"), and all other guidelines, regulations and directives issued by the Sponsor in relation to the Competition, all which are incorporated by reference into this Agreement.

The Applicant agrees and acknowledges that the Final Submission (defined below) procedures, detailed testing protocols for the final stage of the Competition, and details concerning final stage logistics ("**Rules and Regulations**") that will govern the final stage of the Competition have not been finalized as of the date of this Agreement. It is the intention of the Sponsor that these Rules and Regulations will be finalized and provided to competition finalists at least one week prior to the official commencement of the final stage of the Competition). Such Competition Rules and Regulations will however be subject to certain changes pursuant to the Competition Guidelines and as described below. To be eligible to enter and win, the Applicant must meet each of the following eligibility requirements, and comply with this Agreement, when you submit a Submission (as defined in clause 3.7.4) to the Site.

The Applicant acknowledges and agrees that the Sponsor reserves the right to use its discretion when publishing results or awarding prizes. The Applicant acknowledge and agrees that the Sponsor reserves the absolute right to suspend, delay or cancel the Competition at any time, irrespective of the stage of the Competition. The Sponsor shall not in any circumstances (whether in tort, contract or otherwise) incur any liability whatsoever and howsoever described to the Applicant or any person whatsoever if it cancels, delays or suspends the Competition or decides not to make an award. The Applicant acknowledges and agrees that this Agreement shall not create any expectation (whether under the principle of legitimate expectation or otherwise) that the Sponsor shall proceed with or complete the

Competition or grant any prize or other award or any compensation whatsoever to the Applicant on account of the suspension, delay or cancellation of the Competition.

NOW, in consideration of allowing the Applicant to participate in the Competition, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Applicant agrees as follows:

1. ELIGIBILITY:

- 1.1. The Competition is open only to Teams that meet the following requirements upon registration:
 - 1.1.2. One of the founders must be a Nigerian Citizen
 - 1.1.3. each individual member of the Team is at least 18 years old at the time of registration;
 - 1.1.4. no member of the Team is a Politically Exposed Person (being a person who has a high-profile political role or has been entrusted with a prominent public function);
 - 1.1.5. the Eligible Entity is not a Prohibited Person;
 - 1.1.6. neither the Applicant or any member of the Team finished in the top 10 positions in any of the previous editions of the Competition.
 - 1.1.7. no member of the Team is, or is howsoever related to, a director, officer, member, manager, and employee of the Sponsor, other funders of the Competition, or any of their respective parent companies, affiliates, subsidiaries, agents, professional advisors, advertising, promotional, public relations, and fulfillment agencies, consultants, Panel (as defined in clause 6.3.1), legal counsel, or immediate family members of each of the foregoing (spouse, parent, child, sibling, grandparent, and "step" child, wherever they may live)("Prohibited Affiliations");
 - 1.1.8. the Applicant or a member of the Team has not previously withdrawn, been terminated, or been disqualified from the Competition; and
 - 1.1.9. the Applicant and every member of the Team otherwise comply with the restrictions in the Competition Guidelines, including ensuring that Product Solutions (as defined in clause 3.7.2 below) are beyond the idea stage at the time the initial submission is made.
- 1.2. If the Applicant or any member of the Team does not meet any of these requirements, or any other eligibility requirements in this Agreement, the Applicant and the Team are not eligible to win a prize. For clarity, if any member of the Team fails to meet all of the eligibility requirements in this Agreement, that Team Member (defined in clause 3.2.2) must be disqualified from the Team for the Team to be eligible to win any prize. To be eligible to win a prize, entries must be completed and received by the Sponsor in the manner and format designated below. All questions about eligibility of any Team Member, including whether any affiliation constitutes a Prohibited Affiliation, should be

addressed to npi@nsia.com.ng. The Sponsor has the discretion to determine eligibility, and all decisions by the Sponsor regarding eligibility are final.

2. **COMPETITION PERIOD:**

The Competition entry period starts on 1st June 2026 and ends on 30th June 2026 (the "**Competition Period**"). The Sponsor may, however, at its sole discretion extend or shorten the Competition Period. All Submissions must be received during the Call for Application Period and meet other requirements in this Agreement to be eligible to participate in the Competition or to win a prize. The Sponsor's or its designee's computer is the official time-keeping device for the Competition.

3. **HOW TO ENTER:**

- 3.1. Eligible participants must enter as a team organized under a single legal entity, which means a valid existing legal entity (e.g., limited liability company, partnership (including limited liability partnerships and limited partnerships), sole proprietorship, nonprofit, etc.) (a "**Eligible Entity**") that is duly organized, and operated in such a way that it is eligible to receive a Prize (described in Clause 7 below) (a "**Team**").
- 3.2. Each Team may consist of:
 - 3.2.1. contributors of any pre-existing or developed intellectual property to the Team; and
 - 3.2.2. individuals involved in the design, development, or testing of the Product Solution (defined below) ("**Team Members**"), and will not include any:
 - (a) investors, donors, and sponsors who make financial contributions to the Team;
 - (b) suppliers of off-the-shelf parts and hardware; or
 - (c) third-party holders of any intellectual property licensed to the Team for use in its Submission (including the Product Solution).
- 3.3. At least one individual must be listed as the representative of the team ("**Team Lead**") in the Submission. Only a person with the authority to enter into agreements on behalf of the Eligible Entity and to bind such Eligible Entity to this Agreement may participate as a Team Leader.
- 3.4. A Team's Submission must be submitted to the Site solely by the Team Lead through the Account (defined in clause 3.7.1) created in the submission portal.
- 3.5. If at any time during the Competition, a Team's legal status or composition changes (e.g., a Team Member leaves the Eligible Entity), the Team must provide written notice to the Sponsor within 10 business days of change. Failure to notify the Sponsor of changes to a Team's legal status or composition may result in loss of eligibility.
- 3.6. If a Team is selected as a potential winner, each individual Team Member may be required to sign a declaration of eligibility and liability/publicity release, or any other documents reasonably required by the Sponsor (or the Sponsor's designee or affiliate) in order to be eligible to potentially win a prize (as described in clause 7 below).
- 3.7. To enter, complete the following steps during the Competition Period:

- 3.7.1. First, the Team Lead must follow the instructions on the Site at <https://nsia-ip.com> to begin Your Submission, including by providing a name and email address to create an account for your Team ("**Account**").
- 3.7.2. Second, describe your product solution by uploading a pitch deck, outlining as part of your Submission how it is unique, original, and new ("**Product Solution**"). To qualify as an adequately developed Product Solution, it must meet the requirements specified in the Competition Guidelines outlined in Schedule A of this Agreement.
- 3.7.3. Third, in your Account provide all of the requested information and complete all of the required submission steps in the Account submission portal, including the (a) "personal information," (b) "team information," (c) "company information," (d) "product information," (e) "investment information" (f) competition submission agreement," (g) "upload files," and (h) "submit" steps.
- 3.7.4. Collectively, all steps taken, and information provided during your completion of the above steps are referred to as your "Submission." You must complete your Submission as instructed to participate in the Competition. Submissions received by postal mail or other means not expressly permitted in this Agreement will not be considered. All Submissions must comply with the requirements of the Submission instructions and be in English language. The Sponsor reserves the right to approve each Team Member and Team before such person or Team is eligible at the Sponsor's absolute discretion.

4. MATTERS TO NOTE:

4.1. Merger of Teams:

Teams may not merge without the express prior written permission of the Sponsor, which may only be granted (at the Sponsor's discretion) if the Eligible Entity of a Team legally acquires the business of another Team, subject to Team size limitations. Any Sponsor approved Team mergers must be completed before the final stage of the Competition i.e. the Demo Stage (defined below).

4.2. Disqualifications of Teams:

The Sponsor reserves the right at any time to disqualify any Team that (a) becomes embroiled in internal conflicts or disputes; or (b) provides, false, inaccurate or misleading information in its submission; or (c) violates the representations and warranties below; or (d) violates any terms of this Agreement or any incorporated or related Sponsor terms, policies, or guidelines, or (e) in the Sponsor's opinion, poses any risk (including without limitation, reputational risks) to the Competition or the Sponsor.

4.3. Withdrawal:

4.3.1. An individual participant of a Team or an entire Team may withdraw from the Competition at any time. Such Team must provide written notice of withdrawal to the Sponsor 10 business days before its withdrawal.

4.3.2. Upon withdrawal, such individual participant or Team will:

- (a) no longer be eligible to receive any prize;
 - (b) cease use of all Competition materials;
 - (c) cease to refer to itself/himself/herself or otherwise represent to the public that it/he/she is a participant in the Competition, and
 - (d) return (or destroy if so, instructed in writing by the Sponsor) all media, documents, information, and materials provided to such individual participant or Team by the Sponsor or its affiliates or funders. Such individual participant or Team will certify in writing that it has complied with these provisions within 10 business days of withdrawal.
- 4.3.3. Once an individual participant or Team has withdrawn or is otherwise disqualified from the Competition, the participant, Team, or Team Members will not engage in conduct that is determined by Sponsor:
- (a) to reflect poorly on Sponsor or any Competition funder;
 - (b) to be disparaging to Sponsor or any Sponsor employee, director or agent, or any actor in the Competition including without limitation, other Applicants and the Panel; or
 - (c) intended to disrupt or harm, in any manner, the Competition, Sponsor, or any other Competition funder.

4.4. Limits and Restrictions on Submissions:

- 4.4.1. No individual person or entity may be on or represented by more than one Team.
- 4.4.2. No Team shall make more than one Submission in the Competition.
- 4.4.3. Any subsequent application by a Team shall not be considered.
- 4.4.4. Any attempts to obtain additional entries through fraud, bots, or other illegitimate or unfair means will result in disqualification at the Sponsor's discretion.
- 4.4.5. A participant or Team may not have any Sponsor employee, Judge, Competition advisor, or any of their immediate family members, with any financial or other material interest in the participant or Team that may result in a conflict of interests, which will result in disqualification of the Team. For example, a Team may not include an Advisor as a Team Member. If You have any questions about a potential conflict of interests, please contact the Sponsor by email at info@nsia-ip.com

5. REPRESENTATIONS AND WARRANTIES

- 5.1. By making a Submission and consenting to this Agreement, the Applicant agrees that the Submission conforms to the representations and warranties detailed below. The Sponsor may, in its absolute discretion, remove any Submission and disqualify the Applicant from the Competition if it believes that the Applicant's Submission fails to conform with this Agreement, including the representations and warranties below.
- 5.2. The Applicant and each Team Member, if applicable, each represent and warrant that each of the statements set out in Clauses 5.2.1 to 5.2.15 are true accurate and not misleading as at the date of this Agreement and shall remain true, accurate and not misleading at all times during the Competition Period and for so long as the Applicant or any Team Member continues to participate in the Competition:

- 5.2.1. each of the Applicant and each Team Member is eligible to enter the Competition;
- 5.2.2. the Submission is original to the Applicant and that the Applicant (or the Eligible Entity) are the owners of all rights, title and interest in and to the Submission and have the right to grant the rights granted herein, including all appropriate license rights in all third-party technologies, methods, resources and intellectual property ("third-Party Technology") in such Submission(s), and that the Applicant and, if applicable, the Team's Submission(s) will be accompanied by and in accordance with all appropriate licenses in such third-Party Technology;
- 5.2.3. the Applicant and each of the Team Members have the unconditional right to submit the Submission to the Sponsor pursuant to this Agreement and the Submission and the use thereof as contemplated herein does not and will not violate or infringe upon any law or regulation or the rights of any third party, including any intellectual property rights (including copyrights, trademark rights, patent rights), confidentiality rights, moral rights, rights of privacy, rights of publicity, or rights of attribution;
- 5.2.4. the Submission does not contain any viruses, Trojan horses, worms, or other computer programming routines that are intended to damage, detrimentally interfere with, surreptitiously intercept, spy on, or expropriate any system or data;
- 5.2.5. statements that the Applicant assert as fact are true and accurate and the Applicant's Submission does not contain untruthful, incomplete, inaccurate or misleading information;
- 5.2.6. the Applicant and each of the Team Members are not a party to (and each one of them each agree neither the Applicant nor any Team Member will become a party to) any agreement, obligation, or understanding that is inconsistent with this Agreement or might limit or impair Sponsor's rights or the Team's obligations under this Agreement;
- 5.2.7. there is no lawsuit, proceeding, or any other claim pending or threatened against the Applicant or the Team, nor does any circumstance exist, to the Applicant or any Team Member's knowledge, which may be the basis of any such suit, proceeding, or other claim that could limit or impair the Applicant or the Team's performance of its obligations pursuant to this Agreement;
- 5.2.8. the Submission does not:
 - (a) contain disparaging or defamatory statements;
 - (b) include threats to any person, place, business, or group;
 - (c) contain obscene, offensive, or indecent content;
 - (d) depict any risky behavior; or
 - (e) contain material that promotes bigotry, racism, hatred or harm, against any group or individual or promotes discrimination based on race, gender, religion, nationality, disability, sexual orientation or age;
- 5.2.9. the Applicant and the Team's participation in the Competition does not violate the terms of any employment (including any procedures established by any employment contract) with respect to participating in promotions or

competitions) and, if required, the affected member of the Team has permission from the employer to enter into the Competition and be bound by the terms of this Agreement and the Competition Guidelines;

- 5.2.10. each Team Member has authorized the Submission (or will authorize the Submission when it is made) and expressly agrees to this Agreement and the Competition Guidelines and agrees to release Sponsor from all liability in connection with this Competition and any Competition prize;
- 5.2.11. the Applicant and the Team will comply with all applicable laws, rules, and regulations and will obtain all necessary licenses, waivers, and/or permits from the applicable regulatory bodies or other applicable third parties associated with the Applicant and the Team's Submission and participation in the Competition;
- 5.2.12. the Applicant and the Team have had the opportunity to consult with legal counsel and ask questions about this Agreement and acknowledge and agree that Applicant and each Team Member has entered into this Agreement with an understanding of the terms and limitations of this Agreement;
- 5.2.13. the Applicant will not, and must ensure that all employees, agents, or representatives of the Applicant do not, engage in any dishonesty or unfairness in obtaining a benefit, or causing a loss, by deception or other means, and includes incidents of attempted, alleged, suspected, or detected fraud;
- 5.2.14. the Applicant and the Team understand and agree that the Applicant and the Team are responsible for obtaining any insurance coverage that the Applicant and the Team consider appropriate at no cost to the Sponsor or the Competition;
- 5.2.15. the Applicant and its Team will not engage in any communications with any Judge or Panel member (defined below) about the Competition outside of any official communication channels offered by Sponsor in its sole discretion. The Applicant and its Team acknowledge and agree that the details concerning the Evaluation Criteria (defined below) and other rules and regulations that will govern the Competition may be clarified or refined after the date of this Agreement and, any such clarifications and refinements will be specified in the Competition Guidelines and other documents provided by Sponsor from time to time.

6. EVALUATION, SELECTION AND NOTIFICATION OF WINNERS:

There are three stages of the Competition:

6.1. The Pre-Selection Stage

- 6.1.1. At the first stage, Submissions detailing the digital product/service, business model and minimum viable product of each Applicant would be evaluated by an evaluation committee comprising of representatives of the Sponsor, its technical partners and venture partners. The panel would select the 100 best Submissions to proceed to the second stage.

- 6.1.2. The committee will evaluate the Submissions to help ensure the most viable, and promising Product Solutions rise to the final stage of market readiness and score each Submission using the criteria set forth in the Competition Guidelines ("**Evaluation Criteria**"). The Evaluation Criteria will include but not be limited to the following:

Criteria	Description
Environmental and Social Impact	Materials must minimize negative social & environmental impacts arising from their production. Materials will be assessed against a set of environmental and social metrics to measure the impacts of production. Such measures may include, but are not limited to: understanding of the problem being addressed
Product Performance	Products must meet industry standard performance specifications to ensure solutions can meet the technical requirements easy, efficient and effective deployment for consumer end-use. Performance criteria may include, but are not limited to: engineering, functionality, aesthetics and general design.
Scalability	Solutions must be scalable. Factors affecting scalability include, but are not limited to: • input constraints • marketability and appeal to both brands and end consumers
Cost	Solutions must have a clear pathway to becoming reasonably cost competitive

6.2. The Accelerator Stage

- 6.2.1. At stage two, prior to the commencement of the virtual training program, the 100 shortlisted Applicants will be required to provide documentation in relation to corporate, financial, tax and regulatory compliance checks to be carried out for KYC purposes.
- 6.2.2. The 100 shortlisted Applicants will participate in a virtual training program designed to mentor and equip the Teams with the tools required to succeed.
- 6.2.3. This stage of the competition will include intensive modules on market strategy, technology review (design and functionality), finance, marketing and communications, pitch practice, legal and governance.
- 6.2.4. At the conclusion of the virtual training, a panel of industry experts appointed by the Sponsor would select 25 of the top scoring eligible Submissions, to continue forward in the Competition.
- 6.2.5. Thereafter, the top 25 would participate in an in person bootcamp, after which a mini demo day would be held, and a panel of industry experts appointed by the Sponsor would select the top 10 finalists to proceed to the demo day stage ("Finalists"). The Finalists would have access to training and resources as well as networking opportunities.

- 6.2.6. It is expected that at the end of this stage, the Finalists will be able to compile their Product Solution into a "Final Submission". The Sponsor may request routine updates from Finalists throughout the Product Solution compilation process. The Sponsor may also require Finalists to:
- (a) participate in Sponsor marketing campaigns;
 - (b) participate in webinars and other events that showcase the Competition, Sponsor and Sponsor's partners;
 - (c) participate in a site visit from the Sponsor and the Sponsor's partners for purposes of collecting media assets (photo, video, etc.) for marketing purposes and as part of the Competition process;
 - (d) engage with the Sponsor regarding the state of the market, opportunities for collaboration, etc. The Sponsor will elaborate on these and other potential Finalist activities and Final Submission guidelines in the release of the Rules and Regulations.
- 6.2.7. The Sponsor will notify each Finalist through email. In addition, before being deemed a Finalist, potential Finalists may be required to submit other agreements to verify that they are prepared to proceed in the Competition. The previously mentioned documents and agreements must be submitted as requested by Sponsor.
- 6.2.8. If (a) the attempted notification is returned as undeliverable without a forwarding address; (b) any required documents are not returned within ten business days; or (c) if a potential Finalist is otherwise unable to proceed with the Competition, the next highest scoring Applicant would be selected to replace the affected Applicant.
- 6.2.9. All Finalists must be validly registered entities at the Corporate Affairs Commission, under the Laws of the Federal Republic of Nigeria.
- 6.2.10. Notwithstanding clause 6.2.8 above, a Finalist not registered in Nigeria may opt to register a wholly owned subsidiary in Nigeria for purposes of complying with the requirements of clause 6.2.8, and such wholly owned subsidiary shall be entitled to take the benefit of the prizes in clause 7.

6.3. The Demo Day Stage

- 6.3.1. At the final stage, Finalists will be allotted a timeline to present their pitch to the Panel (comprising of the Sponsor, its technical partner, its Venture Partners, technology industry experts, and investors.).
- 6.3.2. At the end of the Finalists' presentations, the Panel will score each Final Submission using the criteria "Finalist Evaluation Criteria" set forth in the Rules and Regulations. The three top scoring Final Submissions will be deemed potential "Winners". The Sponsor will notify the Winners in person at the end of the Finalist's presentations.
- 6.3.3. As a condition of being selected as a Winner, each potential Winner must follow the instructions contained in his/her Team's notification, and except where prohibited by law, Sponsor may require each potential Winner (including all Team Members of a winning Team) to execute and deliver a written declaration

of eligibility and liability/publicity release, acceptance of this Agreement, tax forms, proof of identity, insurance documentation, and other reasonable documentation.

- 6.3.4. The Panel would have the sole and absolute discretion to score the Submissions and determine the potential Winners. An Applicant or Team may not dispute any decision or ruling of the Panel. An Applicant or or Team will have no right to observe the evaluation evaluations, or to be informed of the calculations, measurements or results, unless the information is made publicly available by Sponsor (at Sponsor's discretion).

6.4. **Post Demo Day Stage**

- 6.4.1. One Team member in each of the Finalists will participate in an all-expense paid, 15 days training program at a partner institution.

6.5. **Verification of Potential Winners**

- 6.5.1. Each potential winner is subject to verification by the Sponsor at its discretion, whose decisions are final and binding in all matters related to the competition. A Team is not a Finalist or prize winner unless and until the team's eligibility has been verified and the team leader has been notified that verification is complete and no further action is needed.

- 6.5.2. If there is a tie, the potential winning Submission or Final Submission will be determined by the Panel pursuant to the highest score in Scalability.

7. **PRIZES:**

7.1. **Finalists:**

There will be three Winners consisting of one 1st Prize Winner, one 2nd Prize Winner, and one 3rd Prize Winner, and seven finalists.

7.2. **Prizes**

7.2.1. The:

- (a) 1st Prize Winner will receive cash prize of US\$25,000 and an equity prize of US\$75,000,
- (b) the 2nd Prize Winner will receive a cash prize of US\$17,500 and an equity prize of US\$52,500,
- (c) 3rd Prize Winner will receive a cash prize of US\$12,500 and equity prize of US\$37,500; and
- (d) All top ten (10) finalists would be entitled to an all-expense paid training program for one Team member at a partner institution, subject to the terms of this Agreement and the partner institutions terms and conditions.

Prize Category	Cash	Equity	Other
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First Prize	\$25,000	\$75,000	All-expense paid training for one Team member at a partner institution.
Second Prize	\$17,500	\$52,500	All-expense paid training for one Team member at a partner institution.
Third Prize	\$12,500	\$37,500	All-expense paid training for one Team member at a partner institution.
Other (fourth to tenth place)			All-expense paid training for one Team member at a partner institution.

- 7.2.2. There will also be an impact prize of \$45,000 sponsored by one of our partners. The criteria for determination and selection of the impact prize winner(s) will be at the sole discretion of our partner sponsoring the prize and will be determined independently from the top 10 NPI prize winners referred to in clause 7.2.1 above.
- 7.2.3. There will also be a Healthcare prize of \$15,000 sponsored by one of our partners. The criteria for determination and selection of the Healthcare prize winner(s) will be at the sole discretion of our partner sponsoring the prize and will be determined independently from the top 10 NPI prize winners referred to in clause 7.2.1 above.
- 7.2.4. There will also be an innovator prize of \$10,000 sponsored by one of our partners. The criteria for determination and selection of the innovator prize winner(s) will be at the sole discretion of our partner sponsoring the prize and will be determined independently from the top 10 NPI prize winners referred to in clause 7.2.1 above.
- 7.2.5. As a condition to accepting the cash and other prizes in clause 7.2.1, the first, second and third place winners are also required to accept the equity prizes.
- 7.2.6. The equity prizes will be made as investments, subject to the winners meeting the equity investment criteria set by the Sponsor and its venture capital partners including but not limited to the following:
- i. The conduct of a valuation exercise to be carried out by the Sponsor's venture capital partners.
 - ii. Execution of definitive terms of an equity investment agreement to be executed by each prize winner which will include amongst others, the grant to the Sponsor of a right to a board seat on the Board of Directors of the prize winners.
- 7.2.7. For purposes of the equity investment, the top three winners will be assigned a pre-set valuation cap of \$2,000,000 (Two Million United States Dollars), subject to a pre-money valuation exercise.

- 7.2.8. For each Winner that is a publicly traded company, the investment will be made in the form of a purchase of the prize Winner's publicly traded securities.
- 7.2.9. Potential winners may be required to execute additional agreements as a condition to being named a Finalist, Winner, or receiving a prize. If a Finalist or Winner fails or refuses to sign and return these agreements within five days of the request (or a shorter time as exigencies may require), the Finalist or Winner may be disqualified, and an alternate Finalist or Winner may be selected.

7.3. Prize Limitations and Restrictions:

- 7.3.1. If, by reason of a print or other error, more prizes are claimed or Finalists are named than the prizes set forth in this Agreement, an alternate winner will be selected in accordance with the above Evaluation Criteria (or Evaluation Criteria identified in the Competition Guidelines or in the Rules and Regulations, as applicable) from among all eligible claimants making purportedly valid claims to award the advertised number of prizes available. No substitutions or exchanges of any prizes will be permitted, except that Sponsor (or Sponsor's designee or affiliate) reserves the right to substitute a prize of comparable or greater value (including a cash alternative) for any prize. Prize payment(s) may be made by Sponsor or Sponsor's designee or affiliate.
- 7.3.2. All prizes are awarded "as is" and without warranty of any kind, express or implied (including any implied warranty of merchantability or fitness for a particular purpose). The Sponsor (or sponsor's designee or affiliate) will not replace any lost or stolen prize or components of a prize.
- 7.3.3. All taxes imposed by any jurisdiction associated with the receipt or use of any prize are the sole responsibility of the winner.
- 7.3.4. Any and all fees and taxes incurred in the processing, transfer, allocation, currency exchange, or delivery of payment of a prize to the winning Team will be the responsibility of the winning Team. Should Sponsor be required to make such payments in order to complete delivery of a prize payment, said payments will be deducted from the prize amount. Winners will only be paid upon winning the prize and will not receive payment for preparation or participation in the Competition. Sponsor reserves the right to withhold or recover any prize, or portion thereof, if Team withdraws, intends to withdraw, or fails to participate throughout the complete duration of the Competition. Team and Team Members are solely responsible for all of their own costs. Compliance with payment instructions provided by Team and completion of all requested documentation will constitute acceptance of the applicable prize.

8. LIMITATIONS OF LIABILITY, DISCLAIMERS, RELEASES:

- 8.1. The Sponsor, other paid Competition funders, Competition advisors, and any of their respective parent companies, subsidiaries, affiliates, directors, officers, professional advisors, consultants, contractors, legal counsel, public relations firms, employees and advertising, fulfillment and marketing agencies (collectively, the "Released Parties") will not be responsible for:

- 8.1.1. any late, lost, misrouted, garbled or distorted or damaged transmissions or entries;
 - 8.1.2. telephone, electronic, hardware, software, network, Internet, or other computer or communications-related malfunctions or failures;
 - 8.1.3. any Competition disruptions, injuries, losses or damages caused by events beyond the control of Sponsor or by non-authorized human intervention; or
 - 8.1.4. any printing or typographical errors in any materials associated with the Competition, except to the extent participant incurred damages directly due to the Released Parties' willful misconduct or gross negligence.
- 8.2. By entering the Competition, the Applicant releases, on behalf of the Applicant and its Team, the Sponsor and all Released Parties from any liability whatsoever, except the liability for physical injury inflicted intentionally by the Sponsor or a Released Party, and waive any and all causes of action, related to any claims, costs, injuries, losses, or damages of any kind arising out of or in connection with the Competition or delivery, misdelivery, acceptance, possession, use of, or inability to use, any prize (including claims, costs, injuries, losses and damages related to personal injuries, death, damage to or destruction of property, breach of implied contract, breach of confidentiality, rights of publicity or privacy, defamation or portrayal in a false light, whether intentional or unintentional), whether under a theory of contract, tort (including negligence), warranty or other theory.
- 8.3. The Released Parties will have no liability for any lost profits or other consequential, special, punitive, indirect, or incidental damages, arising from or related to your participation in the Competition or use or inability to use any equipment or software provided for use in the Competition or any prize or the use of the Sponsor or Competition site(s), even if a released party has been advised of the possibility of such damages. In no event will the aggregate liability of the released parties arising out of or relating to you or your team's participation in the Competition or use of or inability to use any equipment or software provided for use in the competition or any prize exceed NGN100,000 (One Hundred Thousand Naira). The foregoing disclaimer of certain damages and limitations of liability will apply to the maximum extent permitted by applicable law. Notwithstanding anything to the contrary in these terms, nothing in these terms excludes or limits the released parties' liability directly caused by any of the released parties' fraud.

9. LICENSE TO SUBMISSION AND USE OF SPONSOR TRADEMARK:

9.1. Sponsor Use of Submission:

- 9.1.1. The Applicant, and each of the Applicant's Team Members, grants to the Sponsor a perpetual, irrevocable, royalty-free, worldwide license ("License") to publish, reproduce, display, perform, distribute, adapt, edit, modify, translate, create derivative works based upon, and otherwise use and sublicense the Submission (including the Product Solution), or any portion thereof, in any manner, form, media or technology now known or later developed. Without limiting the foregoing, this License includes the right to make editorial revisions to the Submission, to use and publish the Submission in any manner and form, including electronic form, on the Site or in other media, whether now or later

created; to use the Submission for the Sponsor's own internal business purposes; to reproduce and distribute the Submission for advertising, marketing, promotional, educational, informational, commercial, non-commercial, and publicity purposes and to sublicense any of the foregoing to third parties.

- 9.1.2. The Applicant and each of its Team Members further grants to the Sponsor the right to use the Applicant's name, image, trademark, logo; employer's name, trademark, and logo; hometown; aural and visual likeness; and other indicia of persona, on and in connection with the Submission or Final Submission and the Site, including use in the exhibition, broadcast, distribution, advertising, marketing, distribution, display (public and non-public), or promotion of the Submission or Final Submission, the Site, or Sponsor, and any contests offered through the Site. Sponsor will have no obligation to publish, use or retain any Submission or Final Submission made by the Applicant or submit or to return any such Submission or Final Submission to the Applicant, and Sponsor may remove any Submission or Final Submission from the Site at any time in its absolute discretion. At Sponsor's (or Sponsor's designee's or affiliate's) request, the Applicant and each of its Team Members agree to sign a written agreement confirming the terms of this Agreement and to take other measures that Sponsor (or Sponsor's designee or affiliate) reasonably requests to confirm, evidence, or support the rights granted in this Agreement. Additionally, by submitting the Submission, the Applicant hereby irrevocably waives, on its own behalf and on behalf of each person who is involved in the creation (in the latter case representing to the Sponsor that each such person has provided the Applicant the legal right to do so), any moral rights and rights of attribution arising from the creation of the Submission.

9.2. **Participant and Team Use of Sponsor Trademark:**

No Applicant, individual participant or Team may use the Sponsor's logo, design, trademarks and or other insignia ("**Sponsor Marks**") for any purpose whatsoever without the prior written consent of the Sponsor. If any Sponsor Marks is embedded in any application or component of the Competition by the Sponsor for purposes of use by the Applicant, on no account shall any Sponsor Mark be added or used by an Applicant, an individual participant or Team in any media used as part of the Submission or otherwise. The consent of the Sponsor for the use of any Sponsor Marks on any occasion or instance or for any purpose shall be for only that occasion or instance or purpose i.e., Sponsor's written approval is required before each and every use of the Sponsor Marks.

10. **INTELLECTUAL PROPERTY, DATA AND MEDIA RIGHTS:**

- 10.1. Each Team will solely own all of its own Intellectual Property Rights (defined below) to Team Technology (defined below). Such Team will also retain all right, title and other ownership interests, except as otherwise provided in this Agreement, in its own Submission and Final Submission and in all inventions, patents, patent applications, designs, copyrights, trade secrets, software, source code, object code, processes, formulae, ideas, methods, know-how, techniques, devices, creative works, works of authorship, publications, and/or other intellectual property not included in the definition of Team Technology (defined below).

- 10.2. Notwithstanding the foregoing, a participant or Team will not obtain any rights to Sponsor trademarks, patents, patent applications, designs, copyrights, trade secrets, software, source code, object code, processes, formulae, ideas, methods, know-how, techniques, devices, creative works, works of authorship, publications, or other intellectual property, which will remain the sole property of Sponsor, subject to any limited licenses granted by Sponsor under this Agreement or the Competition Guidelines.
- 10.3. Measurement, scoring, statistical and other data ("Data") collected by Sponsor during the operation of the Competition is the intellectual property of Sponsor. Sponsor retains the right to license such data for academic, research and other purposes, however, Sponsor will obtain agreement from Teams before making any public uses of Data. As between Sponsor and participant or Team, Sponsor will own all datasets provided to Team under this Agreement and any modification to those datasets, whether performed by Team or Sponsor. Team hereby assigns any Intellectual Property Rights in those modifications to Sponsor.
- 10.4. For purposes of Clause 10 and this Agreement generally:
- 10.4.1. "Intellectual Property Rights" means all forms of intellectual property rights and protections throughout the world and includes, but is not limited to, any (a) patents (including any patent applications, together with all reissuances, continuations, continuations-in-part, revisions, extensions and re-examinations thereof), (b) copyrights, (c) Internet domain names, trademarks, service marks, and trade dress, together with all goodwill associated therewith, (d) trade secrets, (e) rights in databases, (f) moral rights, rights of privacy, rights of publicity and similar rights, and (f) and any other proprietary rights and protections whether published or unpublished, arising under statutory law, common law, or by contract, and whether or not perfected, including all applications, disclosures and registrations with respect thereto.
- 10.4.2. "Technology" means all know-how, information, ideas, inventions, modifications, prototypes, tools, other tangible embodiments, and works of authorship, including specifications, software, databases, compilations, schematics, documentation, and presentations.
- 10.4.3. "Team Technology" means all Technology conceived, created, or authored by a Team or any of Team Member in connection with, and during, a Team's participation in the Competition and will include both team inventions and team copyrighted works.

11. PRIVACY

- 11.1. Please refer to Sponsor's Data Protection and Privacy Policy.
- 11.2. The Applicant and its Team will neither:
- 11.2.1. provide data to Sponsor within the Submission that constitutes or contains any personally identifiable information i.e., data that can be used to identify a person or a household, other than a participant's information or Team Members' information, nor

11.2.2. link (or attempt to link) any data provided by Sponsor to data that constitutes or contains any personable identifiable information.

12. CONFIDENTIALITY:

- 12.1. The Sponsor, the Applicant and each of the Applicant's Team Members (if applicable) acknowledges that certain information received in connection with the Competition and this Agreement, including, but not limited to, information disclosed, developed, or otherwise acquired that is not generally available to the public (including all information regarding the business, affairs and technology of Sponsor, its affiliates, a Sponsor or any Team participating in the Competition, including, business concepts, processes, methods, systems, know-how, devices, formulas, marketing methods, prices, customer information, customer lists, methods of operation, trade secrets, or other information, whether in oral, written, or electronic form, regardless of who discloses the information) will constitute "Confidential Information." Confidential Information also includes inventions, designs, drawings, standards, specifications, modifications, technical information, prototypes, test versions, and models associated with the inventions or solutions conceived or developed by teams. For clarity, Competition results until publicly announced by Sponsor are the Confidential Information of Sponsor.
- 12.2. The following information will not be considered Confidential Information:
- 12.2.1. information that is publicly available through no fault of the party that was obligated to keep it confidential;
 - 12.2.2. information that was known by a party before commencement of discussions regarding the subject matter of this Agreement;
 - 12.2.3. information that was independently developed by a party without reference to the Confidential Information of the other party; and
 - 12.2.4. information rightfully disclosed to Applicant by a third party without continuing restrictions on its use or disclosure.
- 12.3. The Sponsor, the Applicant, and each of its Team members (if applicable) represent and warrant that they will not disclose, use, or publish any Confidential Information of the disclosing party, except as required by law or authorized expressly by the disclosing party in writing.
- 12.4. The Applicant acknowledges and agree that money damages would not be a sufficient remedy for any breach of this clause 12, and such breach would result in irreparable harm for which there is no adequate remedy at law. Accordingly, in the event of any such breach or threatened breach, the Sponsor, in addition to any other remedies that it may have, will be entitled, without the requirement of proving actual damages or posting a bond or other security (to the extent permitted under applicable laws), to obtain equitable relief, including injunctive relief and specific performance in any court of competent jurisdiction. The remedies stated in this clause 12 are nonexclusive and the exercise of any right by Sponsor will not preclude the exercise of any other right under this Agreement, at law, or in equity.

13. INDEMNIFICATION

The Applicant hereby agree on behalf of itself and its Team to indemnify and hold harmless the Sponsor and the Released Parties from and against any and all claims, demands expenses, losses and liabilities including reasonable attorneys' fees and punitive damages, arising out of or in connection with the Applicant's or its Team's participation in the Competition and the Submission or Final Submission, and any use thereof, including those arising from any breach, or alleged breach, of the warranties, representations, and promises provided by the Applicant and/or its Team in this Agreement.

14. GOVERNING LAW AND DISPUTE RESOLUTION:

14.1. Governing Law

This Agreement shall be governed by the laws of the Federal Republic of Nigeria

14.2. Dispute Resolution

14.2.1. Except for disputes in which the Applicant or the Sponsor seeks injunctive or other equitable relief for the alleged unlawful use of intellectual property or preserving or giving effect to the arbitration agreement herein, the Applicant and Sponsor waive their rights to have any dispute arising out of or related to this Agreement resolved in court.

14.2.2. For any dispute or claim that the Applicant has against Sponsor or relating in any way to the Competition or the Agreement, the Applicant agrees to first contact Sponsor and attempt to resolve the claim informally by sending a written notice of the Applicant's claim ("Notice") to the Sponsor by email at legal@nsia.com.ng or by certified mail addressed the General Counsel, Nigeria Sovereign Investment Authority, 4th Floor, Clan Place, Plot 1386A, Tigris Crescent, Maitama, FCT Abuja, Nigeria. The Notice must:

- (a) include the Applicant's name, residence address, email address, and telephone number;
- (b) describe the nature and basis of the claim; and (c) set forth the specific relief sought.

Sponsor's notice to the Applicant would follow the same format.

14.2.3. If the Applicant and the Sponsor cannot reach an agreement to resolve the claim within thirty (30) days after such Notice is received, then either party may submit the dispute to binding arbitration or, under the limited circumstances set forth above, in court.

14.2.4. All disputes submitted to arbitration will be resolved through confidential, binding arbitration under the Arbitration and Mediation Act 2023 and the Arbitration Rules made pursuant thereto.

14.2.5. The seat of Arbitration shall be Nigeria and the place of arbitration shall be Abuja, Nigeria. Arbitration proceedings may be conducted telephonically.

14.2.6. The arbitrator, Sponsor, and the Applicant will maintain the confidentiality of any arbitration proceedings, judgments and awards, including, but not limited to, all

information gathered, prepared and presented for purposes of the arbitration or related to the dispute(s) therein. The duty of confidentiality does not apply to the extent that disclosure is necessary to prepare for or conduct the arbitration hearing on the merits, in connection with a court application for a preliminary remedy or in connection with a judicial challenge to an arbitration award or its enforcement, or to the extent that disclosure is otherwise required by law or judicial decision.

14.2.7. Any claim arising out of or related to this Agreement must be filed within one year after such claim arose; otherwise, the claim is permanently barred.

15. GENERAL CONDITIONS:

- 15.1. Sponsor may assign this Agreement or its interest herein to any third party, at any time, without needing the consent or approval of the Applicant but upon written notice to Applicant.
- 15.2. This Agreement will be binding on all assignees and successors in interest.
- 15.3. All notices to participants and Teams will be delivered via email or to the participant or Team Account, and notices to Sponsor may be delivered to info@nsia-ip.com.
- 15.4. The odds of winning depend on the number and quality of the submissions. Participants and Teams agree to be bound by this Agreement and by the decisions of Sponsor, which are final and binding in all respects.
- 15.5. Participants and Teams may not transfer or assign their Submissions or Final Submissions or any of their rights, interests, duties, and/or responsibilities under this Agreement without prior signed, written consent from Sponsor (which is at Sponsor's sole discretion).
- 15.6. Sponsor reserves the right to change this Agreement and/or the Competition Guidelines at any time in order to reasonably improve the clarity or fairness of the Competition or overall fairness of the Competition.
- 15.7. Sponsor reserves the absolute right to suspend, delay or cancel the Competition at any time, irrespective of the stage of the Competition.
- 15.8. Without limiting any other right of the Sponsor under this Agreement, Sponsor also reserves the right to suspend, postpone, or cancel the Competition or suspend or terminate any participant's or Team's participation in the Competition should viruses, bugs, epidemics, pandemics, civil disruption, unauthorized human intervention or other causes beyond Sponsor's control affect the administration, security or proper implementation of the Competition, or Sponsor otherwise becomes incapable of running the Competition as planned for any reason.
- 15.9. Participants or Teams who violate this Agreement, violate any law, rule or regulation in connection with participation in the Competition, tamper with the operation of the Competition or engage in any conduct that is detrimental or unfair to Sponsor, the Competition or any other participant or Team are subject to disqualification by Sponsor from participating in the Competition.

- 15.10. Sponsor reserves the right to lock out participants or Teams whose eligibility is in question or who have been disqualified or are otherwise ineligible to enter the Competition, as the Sponsor may determine.
- 15.11. The use of "include," "includes," or "including" is illustrative and not limiting.
- 15.12. Sponsor reserves the right to disqualify any Submissions or Final Submissions received that contain inappropriate or offensive content, or that otherwise do not comply with this Agreement.
- 15.13. If any provision of this Agreement is found to be invalid by any court having competent jurisdiction, the invalidity of such provision shall not affect the validity of the remaining provisions of this Agreement, which shall remain in full force and effect.
- 15.14. Sponsor's failure to enforce any term of this Agreement will not constitute a waiver of that provision.

16. SPONSOR CONTACT DETAILS

Nigeria Sovereign Investment Authority
4th Floor, Clan Place
Plot 1386A, Tigris Crescent, Maitama, Abuja
For questions, contact npi@nsia.com.ng

BY SIGNING BELOW, YOU AGREE THAT YOU SATISFY ALL ELIGIBILITY AND PARTICIPATION REQUIREMENTS IN THIS AGREEMENT AND THAT YOU HAVE READ AND AGREE TO ALL OF THE TERMS AND CONDITIONS OF THIS AGREEMENT.

TEAM LEADER

Team Leader Signature: _____
Team Leader Name (please print): _____
Eligible Entity Name (please print): _____
Email Address: _____
Telephone (including country code): _____
Date Signed: _____

To obtain a copy of this Agreement, visit <https://nsia-ip.com> or send a stamped, self-addressed business-size envelope to the Sponsor at the address listed in paragraph 16 above, Attn: NSIA Prize For Innovation Competition Submission Agreement Request. Return postage not required.

SCHEDULE A - Competition Guidelines

The Competition Guidelines may be accessed at: <https://nsia-ip.com>